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Basics in safeguarding intangible cultural heritage in situations of conflict and forced displacement

U65 PowerPoint presentation

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In this presentation

Aim: to provide a basic understanding of the relationship between intangible cultural heritage (ICH) and situations of conflict and forced displacement. The key topics covered are:

- Key conflict concepts and terms;
- The dual role of ICH in conflict situations:
  a) how ICH can be impacted by conflict
  b) how ICH can help communities to mitigate the impacts of conflict;
- Relevant frameworks, instruments and standards, and;
- Implementing the operational principles and modalities for safeguarding intangible cultural heritage in emergencies in situations of conflict and forced displacement.

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Intangible cultural heritage

Intangible cultural heritage means the practices, representations, expressions, knowledge, skills that communities, groups and, in some cases, individuals recognize as part of their cultural heritage. This intangible cultural heritage, **transmitted from generation to generation, is constantly recreated** by communities and **provides them with a sense of identity and continuity.**

(Article 2.1, UNESCO 2003 Convention)

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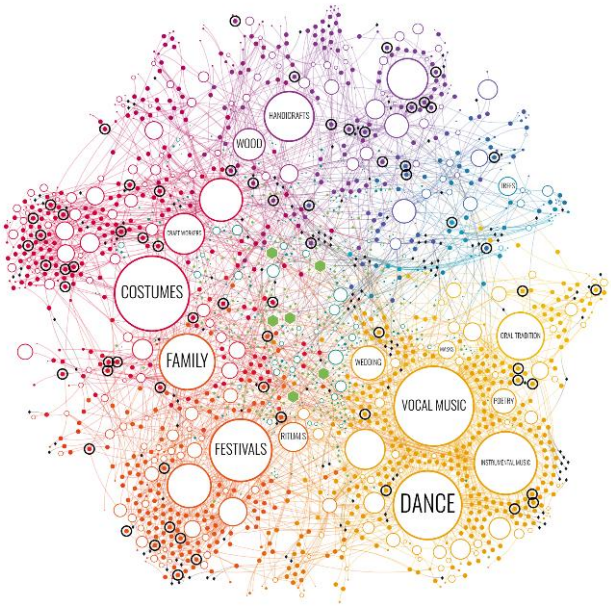
Intangible cultural heritage domains



Intangible cultural heritage is manifested particularly in the following domains:

- Oral traditions and expressions;
- Performing arts;
- Social practices, rituals and festive events;
- Knowledge and practices concerning nature and the universe; and
- Traditional craftsmanship.

Explore the Dive into ICH for some examples.

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Understanding conflict

This training understands conflict broadly to refer to a situation of tension and confrontation that leads to violence and disrupts the normal functioning of a society, ranging from armed hostilities to various forms of socio-political violence.

"An **armed conflict** exists whenever there is a resort to armed force between States or protracted armed violence between governmental authorities and organized armed groups or between such groups within a State." (ICTY, Prosecutor v. Tadić Decision on the Defence Motion for the Interlocutory Appeal on Jurisdiction, 2 October 1995, para. 70).

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Forced displacement

Refugees are persons who are outside their country of origin for reasons of feared persecution, conflict, generalized violence, or other circumstances that have seriously disturbed public order and, as a result, require international protection.

United Nations High Commissioner for Refugees

Asylum seeker is someone whose claim for international protection has not yet been finally decided on by the country in which he or she has submitted her/his request.

United Nations High Commissioner for Refugees

Internally Displaced Persons (IDPs) are persons or groups of persons who have been forced or obliged to flee or to leave their homes or places of habitual residence, in particular as a result of or in order to avoid the effects of armed conflict, situations of generalized violence, violations of human rights or natural or human-made disasters, and who have not crossed an internationally recognized State border.

United Nations Guiding Principles on Internal Displacement (1998)

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Conflict management cycle

The conflict cycle consists of three main phases, which can vary in duration and often overlap:

- **Preparedness** consists of constant monitoring and analysis of social tensions and disputes to anticipate the possibility of violent conflict.
- **Response** phase takes place when violent conflict erupts, thus the humanitarian response operates immediately, providing emergency services and public assistance.
- **Recovery** is the restoration and improvement of facilities, livelihoods and living conditions of conflict-affected communities.

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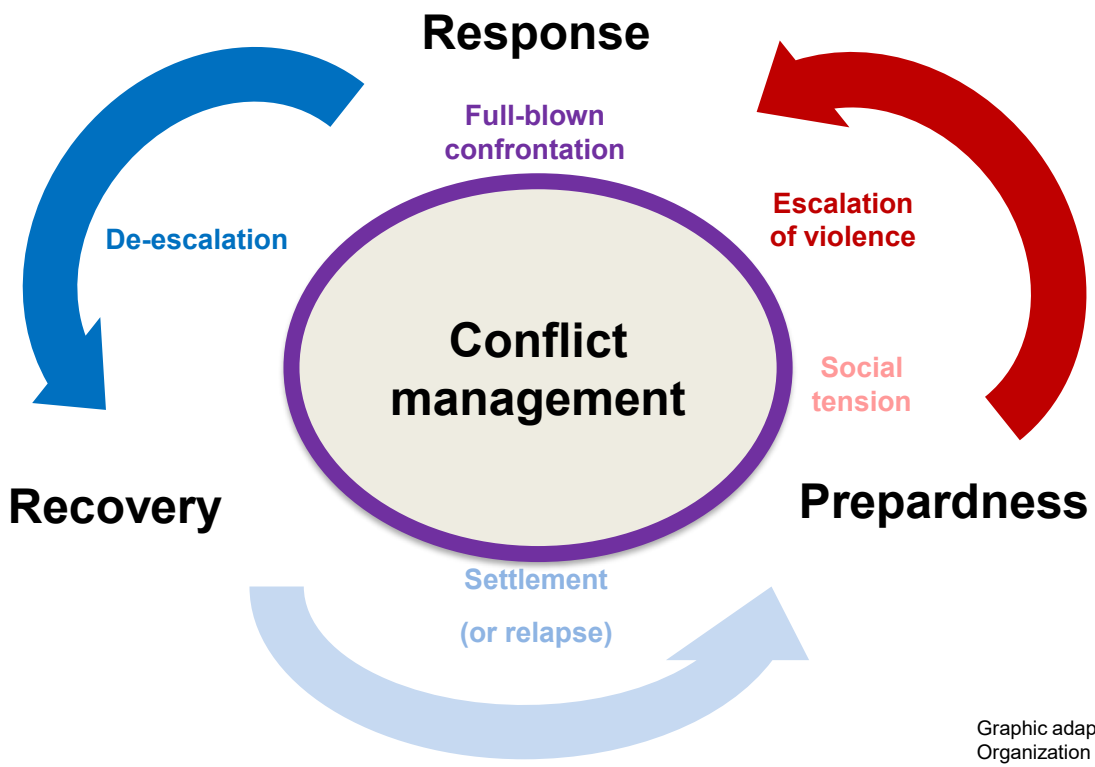
The conflict cycle



Graphic adapted from the International Labour Organization ILO. Dealing with crises arising from conflicts and disasters 2022.

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Impacts of conflict on intangible cultural heritage

Intangible cultural heritage may be affected by conflict in diverse ways, including:

- Death and forced displacement affect the number of practitioners of traditional practices.
- Conflicts alienate people from their land and restrict access to places and spaces that are vital for the viability of intangible cultural heritage.
- Forced migration fractures the social cohesion of communities.

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Exercise 1: The impact of conflict on intangible cultural heritage

Learning objective:

Based on case studies of elements inscribed on the UNESCO List of Intangible Cultural Heritage in Need of Urgent Safeguarding, participants identify and propose:

- Which are the impacts of conflict on these elements?
- What possible actions could be proposed to support communities in safeguarding these elements?

Estimated time: 45 minutes

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Case study: Culture of Ukrainian borscht cooking (Ukraine, 2022)

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Exercise 2: The impact of conflict on intangible cultural heritage

Learning objective:

Based on their own experience, the participants will identify:

- Some elements of intangible cultural heritage impacted by conflict.
- The impact of conflict on these elements and on the communities, groups and individuals concerned.

Estimated time: 30 minutes.

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The roles of intangible cultural heritage in conflict and forced displacement

Safeguarding ICH can play two major roles in situations of conflict and displacement:

1. Mitigate threats to the ICH itself.

2. Help communities prepare for, respond to and recover from conflict situations.

Group discussion (20 minutes):

- Do you know some cases in which ICH has been important for communities in a situation of conflict, post-conflict or forced displacement?
- In which concrete ways can ICH help people in conflict and post-conflict cases?

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Roles of intangible cultural heritage

Some possibilities, intangible cultural heritage can:

- be a force to unite people, helping them to cope with tragedies.
- be a source of resilience and wellbeing, to heal wounds and bind communities
- re-establish dialogue between adversaries, restore peace and strengthen security.
- become an effective strategy in symbolic reparation processes in post-conflict areas.
- be a source of livelihoods.
- be a source of mutual understanding and reconciliation between and within communities, including between displaced populations and host communities.

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Exercise 3: Intangible cultural heritage as a mitigator of the impacts of conflict

Handout 1: Case study analysis: Dual role of intangible cultural heritage in conflict situations

Case study 1: The ‘alabado’ as a resource for healing: Bojayá massacre, Colombia**.**

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International frameworks, instruments and standards for safeguarding intangible cultural heritage in situations of conflict

Text of the 2003 Convention:

Art. 11: “Each State Party shall: (a) take the necessary measures to ensure the safeguarding of the intangible cultural heritage present in its territory”

Art. 15: “(…) each State Party shall endeavour to ensure the widest possible participation of communities, groups and, where appropriate, individuals that create, maintain and transmit such heritage, and to involve them actively in its management.”

Art. 22.2: “In emergencies, requests for assistance shall be examined by the Committee as a matter of priority.”

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Operational Directives

Paragraph 50: “an emergency shall be considered to exist when a State Party finds itself unable to overcome on its own any circumstance due to calamity, natural disaster, armed conflict, serious epidemic or any other natural or human event that has severe consequences for the intangible cultural heritage as well as communities, groups and, if applicable, individuals who are the bearers of that heritage.”

Chapter VI.4 (2016): Intangible Cultural Heritage and Peace: includes provisions concerning the mobilization of intangible cultural heritage and its bearers for the prevention of disputes, peaceful conflict resolution and the restoration of peace and security. (Paragraphs 192-197)

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Ethical principles for safeguarding intangible cultural heritage (2015)

“Access of communities, groups and individuals to the instruments, objects, artefacts, cultural and natural spaces and places of memory whose existence is necessary for expressing the intangible cultural heritage should be ensured, including in situations of armed conflict. Customary practices governing access to intangible cultural heritage should be fully respected, even where these may limit broader public access.”

See: https://ich.unesco.org/en/ethics-and-ich-00866

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Other international frameworks

- The Hague Convention for the Protection of Cultural Property in the Event of Armed Conflict (1954) and its first (1954) and second protocol (1999)
- United Nations Security Council resolution 2347 (2017)
- The Human Rights Council, Resolution 33/20. “Cultural rights and the protection of cultural heritage”.

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UNESCO Strategy and Emergencies

Addendum (2017) to the *Strategy for the Reinforcement of the UNESCO's action for the Protection of Culture and the Promotion of Cultural Pluralism in the Event of Armed Conflict*, aims to:

(1) strengthen the ability of Member States to prevent, mitigate and recover the loss of cultural heritage and diversity as a result of disasters caused by natural and human-induced hazards.

(2) incorporate consideration for culture into the DRR sector and humanitarian action related to disasters by engaging with the relevant stakeholders outside the cultural domain.

2003 Convention's *Operational Principles and Modalities for Safeguarding Intangible Cultural Heritage in Emergencies* (2020)

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Operational principles and modalities for safeguarding intangible cultural heritage in emergencies

Offer guidance to States Parties and other relevant national or international stakeholders on how best to ensure that intangible cultural heritage is most effectively engaged and safeguarded in the context of various types of emergencies.

- The principles should guide all interventions aimed at safeguarding and/or engaging intangible cultural heritage in emergencies.
- The modalities integrate the principles and identify actions appropriate to the three main phases in an emergency management cycle. They will be adapted to the local circumstances.

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Operational Principles

Operational Principles and Modalities for Safeguarding Intangible Cultural Heritage in Emergencies (2020)

Six basic Operational Principles:

1. Central importance of lives and well-being of ICH bearers
2. Expanded understanding of affected communities, including hosts, displaced persons
3. Community-based inventorying essential in all phases of disaster management cycle
4. States Parties to ensure widest possible participation of ICH bearers
5. State and non-state humanitarian actors to support ICH bearers in safeguarding and mitigating actions
6. Respect for the dynamic and adaptive nature of ICH

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Operational Modalities:

Preparedness

The operational modalities implement and integrate the principles by defining appropriate action for each phase:

1. Raise the awareness and build the capacities regarding the dual nature of ICH in conflict situations.
2. Provide resources and support communities to be prepared in the event of an outbreak of conflict.
3. Integrate information on the vulnerability of elements to potential conflict into ICH inventories.
4. Include preparedness phase actions in the ICH safeguarding plans of specific elements.
5. Incorporate relevant ICH in local, national, sub-regional and regional emergency preparedness plans.
6. Links ICH safeguarding and emergency preparedness bodies.

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Operational Modalities:

Response

1. Identify, locate and reach out to communities whose ICH is known or likely to have been affected by the conflict, as early as possible.
2. If possible, resource and support communities to identify and address immediate safeguarding needs and to draw on ICH to mitigate immediate effects of the conflict (Community-Based Needs Identification).
3. Share information amongst other actors (humanitarian actors, relevant NGOs, armed forces, etc) to determine the nature and extent of impact to ICH and scope for engaging ICH in mitigation.
4. Ensure that ICH is incorporated in the emergency assessments and that affected communities are involved in these assessments.

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Operational Modalities:

Recovery

1. Carry out the community-based needs identification if this could not be done earlier.
2. Provide resources and support for communities to develop and undertake safeguarding measures or plans to enhance the mitigation capacity of their ICH.
3. Engage ICH in fostering dialogue, mutual understanding and reconciliation between and within communities, including between displaced communities and host communities.

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Exercise 4: Understanding the operational modalities (Optional)

Learning objective:
The aim of this exercise is for participants not only to learn about and analyze the different actions of the operational modalities, but also to be able to identify which stage of the emergency cycle each action corresponds to.

Estimated time: 40 -50 minutes.

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UNESCO Resources and Financial Support

Resources that support the protection of ICH in the context of disaster include:

- Accelerated procedure for a nomination to the List of Intangible Cultural Heritage in Need of Urgent Safeguarding (see criterion U.6 under Chapter I.1 of the Operational Directives of the 2003 Convention).

Financial and technical support can be sought from:

- UNESCO Heritage Emergency Fund
- Intangible Cultural Heritage Fund's International Assistance program

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Wrapping up

- The concepts introduced in this unit are developed and put into practice in the exercises in Unit 66, *Conducting community-based needs identifications*.
- Any outstanding issues or questions from today's workshop?
- Homework – tasks to complete before the next Unit

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